

SYLLABUS FOR THE 2026 BAR EXAMINATIONS

CIVIL LAW AND LAND TITLES AND DEEDS (20%)

NOTE: Only laws, rules, issuances, and jurisprudence pertinent to the topics in this syllabus as of **June 30, 2025** are examinable materials within the coverage of the 2026 Bar Examinations.

Unless otherwise indicated in the headings or in the entries themselves, the provisions of law cited below refer to the Civil Code of the Philippines (NCC).

I. EFFECT AND APPLICATION OF LAWS

- A. When Laws Take Effect – NCC, Art. 2
- B. Ignorance of the Law – NCC, Art. 3
- C. Retroactivity of Laws – NCC, Art. 4
- D. Mandatory and Prohibitory Laws – NCC, Art. 5
- E. Waiver – NCC, Art. 6
- F. Repeal and Nullification of Laws – NCC, Art. 7
 - 1. Operative Fact Doctrine
- G. Judicial Decisions – NCC, Art. 8
- H. Legal Periods – NCC, Art. 13; Revised Administrative Code of 1987, Book I, Chapter VIII, Sec. 31
- I. Territoriality of Penal Laws – NCC, Art. 14
- J. Conflict of Laws – NCC, Arts. 15-18
 - 1. *Lex Nationalii*
 - 2. *Lex Rei Sitae*
 - 3. *Lex Contractus*
 - 4. *Lex Loci Celebrationis*
 - 5. *Lex Domicilii*
 - 6. *Lex Fori*
 - 7. *Lex Loci Delicti*
 - 8. *Lex Loci Solutionis*
 - 9. *Renvoi*

II. PERSONS

- A. Juridical Capacity
 - 1. Acquisition
 - a. Natural Persons
 - b. Juridical Persons – NCC, Art. 44
 - i. The State and its Political Subdivisions
 - ii. Corporations – R.A. No. 11232, Secs. 2, 4, and 18
 - iii. Cooperatives – R.A. No. 9520, Arts. 3, 4(4), 9, and 16

B. Capacity to Act

1. Presumption of Existence
2. Acquisition – R.A. No. 6809
3. Restrictions
 - a. Further Restrictions Arising from Minority – R.A. No. 11596

III. FAMILY RELATIONS

Family Code of the Philippines (FC) – Executive Order No. 209, as amended

A. Marriage – FC, Articles 1-148; 1987 Constitution, Art. II, Sec. 12 and Art. XV

1. General Principles
 - a. State Policy on Marriage
 - b. Essential and Formal Requisites of Marriage
 - c. Effects of Absence, Defect, or Irregularity of the Requisites
 - d. Rights and Obligations Between Husband and Wife
2. Validity of Marriages Celebrated Abroad
3. Mixed Marriages and Foreign Divorce
4. Void Marriages
5. Voidable Marriages
6. Legal Separation
7. Property Relations between the Spouses

B. Family Relations

1. General Concepts – FC, Arts. 149-151
2. Paternity and Filiation – FC, Arts. 163-182; R.A. No. 9255; R.A. No. 9858
3. Adoption and Care of Children
 - a. Domestic Adoption – R.A. No. 11642
 - i. Who may Adopt
 - ii. Who may be Adopted
 - iii. Process
 - iv. Effects
 - v. Rescission
 - b. Inter-country Adoption – R.A. No. 8043
 - c. Foundlings – R.A. No. 11767
 - i. Citizenship
 - ii. Registration
 - iii. Adoption
 - iv. Recovery by Biological Parents or Legal Guardian
 - v. Safe Haven
4. Support – FC, Arts. 194-208
5. Family Home – FC, Arts. 152-162
6. Parental Authority – FC, Arts. 209-233

IV. CIVIL REGISTER

A. Required Entries – NCC, Arts. 407-408

B. Correction of Entries

1. Rule 108, Rules of Court
2. R.A. No. 9048, as amended by R.A. No. 10172
3. R.A. No. 11909
4. Rectification of Simulated Births – R.A. No. 11222
5. Prohibition on Collateral Attack on Personal Status through Correction of Entries

V. PROPERTY, OWNERSHIP, AND ITS MODIFICATIONS

A. Property

1. Requisites
2. Classification of Property
 - a. According to Nature
 - i. Immovable Property
 - ii. Movable Property
 - b. According to Ownership
 - i. Property of Private Ownership
 - ii. Property of Public Dominion
 - (a) Water Resources
 - (1) Ownership – NCC, Arts. 502-503; P.D. No. 1067, Arts. 5-8
 - (2) Use of Public Waters – NCC, Arts. 504-506; P.D. No. 1067, Arts. 13-16
 - iii. Patrimonial Property

B. Ownership

1. Definition
2. Object
 - a. Difference between Real and Personal Rights
3. Attributes
4. Consequences
5. Actions to Recover Ownership and Possession
 - a. *Accion Reivindicatoria*
 - b. *Accion Publiciana*
 - c. *Accion Interdictal*
 - d. Quieting of Title
6. Accession
7. Co-ownership
8. Possession
 - a. Definition
 - b. Classification of Possession
 - c. Effects of Possession
 - d. Loss of Possession
9. Usufruct

- 10. Easements
 - a. Concept
 - b. Characteristics
 - c. Kinds
 - d. Modes of Acquisition
 - e. Rights and Obligations of the Dominant and Servient Estate
 - f. Extinguishment
- C. Modes of Acquiring Ownership
 - 1. Occupation
 - 2. Tradition
 - 3. Donation
 - 4. Prescription

VI. LAND TITLES AND DEEDS

P.D. No. 1529, as amended

- A. Torrens System
 - 1. Decree of Registration
 - 2. Review of Decree of Registration
 - 3. Innocent Purchaser for Value; Rights
- B. Regalian Doctrine
- C. Nationality Restrictions on Land Ownership
- D. Original Registration
- E. Confirmation of Imperfect Title – R.A. No. 11573
- F. Certificate of Title
- G. Subsequent Registration
 - 1. Voluntary Dealings
 - 2. Involuntary Dealings
 - 3. Adverse Claims and Notice of *Lis Pendens*
- H. Non-registrable Properties
- I. Dealings with Unregistered Lands
- J. Assurance Fund
 - 1. Nature
 - 2. Conditions for Compensation
 - 3. Respondents in Action to Claim
 - 4. Reckoning Point of the Prescriptive Period to Claim
- K. Reconstitution of Title – R.A. No. 26

VII. SUCCESSION

- A. Definition – NCC, Arts. 774 and 712
- B. Elements
 - 1. Death – NCC, Arts. 775 and 777
 - 2. Inheritance – NCC, Arts. 775 and 781

- 3. Successors – NCC, Art. 782
- 4. Acceptance – NCC, Arts. 1041-1057
- C. Testamentary Succession – NCC, Arts. 783-959
- D. Intestate Succession – NCC, Arts. 960-1014
- E. Common Provisions – NCC, Arts. 1015-1105
- F. Distribution of Estate

VIII. OBLIGATIONS AND CONTRACTS

- A. Obligations
 - 1. General Provisions
 - a. Definition
 - b. Essential Elements
 - c. Sources of Obligation
 - d. Nature and Effects of Obligations
 - 2. Classification
 - a. Civil and Natural
 - b. Pure
 - c. Conditional; Kinds of Conditions
 - d. With a Period
 - e. Alternative Obligations
 - f. Joint and Solidary Obligations
 - g. Divisible and Indivisible Obligations
 - h. Obligations with a Penal Clause
 - 3. Extinguishment
 - a. Payment
 - b. Loss of the Thing Due
 - c. Condonation
 - d. Confusion
 - e. Compensation
 - f. Novation
 - i. Concept
 - ii. Express and Implied Novation
 - iii. *Expromision* and *Delegacion* Distinguished
 - (a) Consent Required
 - (b) Effect of Insolvency of New Debtor
 - iv. Legal and Conventional Subrogation
 - 4. Estoppel
- B. Contracts
 - 1. General Provisions
 - a. Definition
 - b. Elements
 - 2. Basic Principles
 - a. Obligatory Force

- b. Freedom to Stipulate and its Limitations
 - c. Relativity
 - d. Consensuality
 - e. Mutuality
- 3. Real v. Consensual Contracts
- 4. Form, Reformation, and Interpretation of Contracts
- 5. Defective Contracts
 - a. Rescissible Contracts
 - b. Voidable Contracts
 - c. Unenforceable Contracts
 - d. Void Contracts

IX. SPECIAL CONTRACTS

A. Sale

- 1. Nature and Form
 - a. Contract of Sale v. Contract to Sell
 - b. Option Contract
 - c. Right of First Refusal
 - d. Earnest Money
- 2. Capacity to Buy or Sell
- 3. Obligations of the Vendor
- 4. Double Sale
- 5. Effects of Loss of Thing Sold
- 6. Installment Sales
 - a. Personal Property
 - b. Real Property – R.A. No. 6552
 - i. Transactions Covered
 - ii. Computation of the Number of Installments Made
 - iii. Rights Given to the Buyer on Installment
 - iv. Requisites for Valid Cancellation
 - v. Effect of Failure to Comply with Requisites of Valid Cancellation
- 7. Conventional and Legal Redemption
- 8. Equitable Mortgage

B. Lease

- 1. Rights and Obligations of the Lessor and Lessee
- 2. Sublease and Assignment

C. Agency

- 1. Nature, Form, and Kinds
- 2. Obligations of Agent and Principal
- 3. Extinguishment

D. Credit Transactions

- 1. Loan
 - a. Definition

- b. *Mutuum* and *Commodatum*
- 2. Deposit
 - a. Definition
 - b. Kinds
- 3. Guaranty and Suretyship
 - a. Nature and Extent
 - b. Effects
 - c. Extinguishment
 - d. Legal and Judicial Bonds
- 4. Real Estate Mortgage
 - a. Requisites
 - b. Characteristics
 - c. Judicial v. Extra-judicial Foreclosure
 - d. Right of Redemption
- 5. Personal Property Security – R.A. No. 11057
 - a. Definitions and Scope – Secs. 3 and 4
 - b. Creation of Security Interest
 - c. Perfection of Security Interest
 - i. Registration
 - ii. Possession
 - iii. Control

X. QUASI-CONTRACTS

- A. Definition
- B. Kinds
 - 1. *Negotiorum Gestio*
 - 2. *Solutio Indebiti*
 - a. Distinction from *Accion In Rem Verso*
 - b. Mistake of Law as Basis for *Solutio Indebiti*
 - c. Significance of Good Faith on the Part of the Payee
- C. Other Quasi-contracts

XI. TORTS AND QUASI-DELICTS

- A. Principles
 - 1. Abuse of Right; Elements
 - 2. Unjust Enrichment
 - 3. Liability without Fault
 - 4. Acts Contrary to Law
 - 5. Acts Contrary to Morals
 - 6. Tortious Interference
 - 7. *Accion In Rem Verso*

B. The Tortfeasor

1. Direct Tortfeasor
2. Persons Made Responsible for Others
 - a. In General
 - i. Quasi-delicts
 - ii. Indirect Liability for Intentional Acts
 - iii. Presumption of Negligence on Persons Indirectly Responsible
 - iv. Nature of Liability
 - b. In Particular
 - i. Parents
 - ii. Guardians
 - iii. Owners and Managers of Establishments and Enterprises
 - iv. Employers
 - v. The State
 - vi. Teachers and Heads of Establishments of Arts and Trades
3. Joint Tortfeasors

C. Proximate Cause

1. Concept
 - a. Distinguished from Immediate Cause
 - b. Distinguished from Intervening Cause
 - c. Distinguished from Remote and Concurrent Causes
2. Legal Cause
 - a. Natural and Probable Consequences
 - b. Foreseeability
3. Efficient Intervening Cause
4. Cause v. Condition
5. Last Clear Chance

D. Classification of Torts

1. Intentional
2. Negligent
3. Strict Liability

E. Defenses

1. Due Diligence
2. Acts of Public Officers
3. Accident or Fortuitous Event
4. *Damnum Absque Injuria*
5. Assumption of Risk
6. Last Clear Chance
7. Prescription
8. Waiver
9. Double Recovery

F. Nuisance

G. Medical Negligence and Malpractice

XII. DAMAGES

- A. General Considerations
- B. Kinds
 - 1. Actual and Compensatory
 - 2. Moral
 - 3. Nominal
 - 4. Temperate or Moderate
 - 5. Liquidated
 - 6. Exemplary or Corrective
- C. Damages in Case of Death
- D. Duty of Injured Party

— NOTHING FOLLOWS —